

OPINION OF THE COURT

FAHEY, J.

The right to be represented by counsel, guaranteed by the Sixth Amendment to the United States Constitution, is deeply intertwined with the integrity of the process of criminal prose-

cution. It is an essential constitutional right; without it all other constitutional trial rights are threatened.

“[R]eason and reflection require us to recognize that in our adversary system of criminal justice, any person haled into court, who is too poor to hire a lawyer, cannot be assured a fair trial unless counsel is provided for [that person]. This seems to us to be an obvious truth.” (*Gideon v Wainwright*, 372 US 335, 344 [1963].)

Only in rare circumstances may a defendant be deemed to have forfeited the right to counsel. On the record before us, we conclude that defendant neither forfeited his right to counsel nor validly waived his right to appeal.

I.

Defendant Bradford Shanks, accused of wrongfully obtaining insurance payments, was charged by indictment with grand larceny in the third degree. The prosecutor’s theory was that defendant, seeking to receive lost wage compensation after an accident, submitted a tax return to his insurance carrier that he had not filed with the Internal Revenue Service, showing past income he had not received.

On June 25, 2015, defendant appeared in Otsego County Court. Defendant wished to retain counsel and the matter was adjourned for him to do so. The prosecutor, citing defendant’s failure to appear in court in prior criminal matters, requested that bail be set. County Court agreed and remanded defendant. A few days later, defendant made bail and was released. On July 10, County Court increased defendant’s bail and again remanded him, after defendant arrived 45 minutes late for an appearance that morning. Defendant requested an “afternoon appointment” in the future, and County Court responded that the court did not “cut hair or clean teeth.” Defendant posted the increased bail a few days later and was released.

On September 25, defendant appeared in County Court, accompanied by his attorney, Assistant Public Defender Ryan Miosek, who entered a plea of not guilty on defendant’s behalf. The Public Defender’s Office had written to alert the court of a conflict of interest, in that the office had previously represented defendant’s wife, who was a potential prosecution witness in defendant’s case. Citing that conflict, County Court relieved Miosek and the entire Public Defender’s Office from repre-

senting defendant. The court placed on the record no other ground for relieving Miosek.

For several months, defendant was represented by attorney David K. Taylor, who, among other things, filed an omnibus motion to dismiss on defendant's behalf. After County Court denied that motion, Taylor filed a motion requesting that the County Court Judge recuse himself. Taylor alluded to the July 10, 2015 appearance at which County Court had responded with "an atypically sarcastic response" to defendant's request for "afternoon appointment[s]." Taylor also alleged that during an unrecorded conference on December 2, 2015, "the district attorney . . . announc[ed] he was going to move to dismiss the case," but "[i]n response, the judge expounded on the number of ways he could see that the case could still be successfully prosecuted" and the following day "the People announced they had decided to go forward." County Court denied the recusal motion.

Taylor sought to withdraw from representing defendant due to an illness, for which the attorney was hospitalized from March 6 through March 16, 2016. On March 21, Taylor wrote to County Court, requesting that all of his pending assigned cases be reassigned to other counsel due to his inability to work during convalescence.

County Court relieved Taylor on April 1, and appointed Lauren Cady Carlson to represent defendant. The record reveals that the court relieved Carlson on April 13, "[u]pon being notified that the assigned attorney [could not] accept the assignment based upon a conflict." A subsequently assigned counsel, Joseph Scott, informed County Court that he could not represent defendant because he was leaving New York and would no longer be practicing law in the state.

County Court relieved Scott on June 16, and appointed Diane DiStefano as defendant's attorney. On August 3, DiStefano requested by letter that she be relieved. The attorney described a telephone conversation in which defendant had "holler[ed] at" her and other conversations with him that "did not go well." DiStefano insisted that she could not "communicate with [defendant]" or "even discuss the case with him, let alone prepare him for trial," while she also emphasized that defendant would "not entertain any type of offer to settle." She posited "a complete and total breakdown of the attorney/client relationship."

During an August 5 appearance, County Court confirmed with DiStefano that she thought there was an irretrievable breakdown. After defendant indicated that he agreed with “[p]art of” that assessment and that he did not think he could continue to work with DiStefano as his attorney, counsel was relieved. County Court accused defendant of “be[ing] abusive to [his] attorneys” and “purposely or inadvertently” causing delays in the proceedings. For his part, defendant denied that he had been rude or belligerent to DiStefano. He also reminded the court that Taylor had been relieved because of illness and insisted that there had been no animosity between them. Although the court told defendant that DiStefano was the third attorney who had asked to be relieved because of defendant’s behavior, the record reflects that Miosek and Carlson were relieved due to conflicts of interest, Scott because he was leaving New York, and Taylor because of his illness.

On September 23, County Court appointed Lee C. Hartjen to represent defendant. In October, Hartjen filed a new motion to dismiss, which County Court denied. By letter dated January 4, 2017, Hartjen sought permission to be relieved based on defendant’s behavior and unwillingness to prepare for trial. In an appearance on January 13, Hartjen explained that, although he and defendant “g[o]t along okay,” defendant expected his case to be successfully resolved by a motion to dismiss, and had been uncooperative with respect to trial preparation. Hartjen added that defendant had become agitated with staff and had accused Hartjen of incompetence and malpractice. Defendant agreed with Hartjen’s request to be relieved. County Court relieved Hartjen and refused to assign another attorney to represent defendant. Instead, a week later, the court assigned Dennis B. Laughlin as defendant’s “legal advisor” or standby counsel.

Forced to represent himself, defendant told County Court that he was “not capable of defending [him]self in this case.” County Court informed defendant that matters had “c[o]me to this point” after attorneys had advised the court that they could not represent defendant “because [he] told them how [he] wanted [his] defense to be presented” and yet defendant had not changed his behavior. The court warned defendant that, if he told the jury that he desired an attorney, the court would be “forced to explain to the jury exactly why [defendant did not] have one,” which could be prejudicial to defendant.

Defendant declined to question prospective jurors, and informed them that he was “definitely not qualified to try this

case.” Such remarks prompted the promised curative instruction from County Court, which described defendant as uncooperative and “unwilling[] to assist in his defense.”

The jury found defendant guilty as charged. County Court remanded defendant without bail, contrary to the recommendation of the prosecutor.

A new attorney retained by defendant filed a second motion for the County Court Judge’s recusal, alleging bias by the court, and a motion to set aside the verdict pursuant to CPL 330.30, which included an argument based on alleged violation of defendant’s right to counsel.

At sentencing on April 21, 2017, the People indicated that if defendant would withdraw the motions, which had not yet been decided, they would recommend a sentence of time served. Defendant discussed the proposed agreement with his attorney. County Court explained that defendant “would be withdrawing [the] motions in their entirety,” and would be giving up “the right to appeal any issue relating to [his] conviction and ultimately [his] sentence.” Defendant replied that he understood.

County Court described the right to appeal that defendant would purportedly waive as follows:

“[Y]our right to appeal is your right after today’s proceedings to . . . challeng[e] them with . . . a higher court It’s your right to claim that errors were made either by the Court, the District Attorney, the police officers, whoever it may be, to claim that somehow your rights were violated and to ask . . . a higher court to review this case with your request that your conviction be vacated or your sentence be changed.

“The District Attorney had indicated he’s willing to go along with this proposal in part to put finality to this matter, to not go through any of that process. So he’s making a condition of his consent, [that] you’re agreeing that this will close out this matter. You’re agreeing to waive your right to appeal your conviction and sentence.”

In language that would be appropriate in the more usual setting of a plea agreement avoiding trial, County Court added that the appeal waiver was “separate and distinct and apart from any trial rights [defendant] may have.” Again defendant said that he understood.

Defendant also signed a written waiver of the right to appeal, in which he “waive[d] any and all rights to appeal from the judgment of conviction and sentence.” The appeal waiver stated that defendant had “been advised of the right to take an appeal . . . , to prosecute the appeal as a poor person, and to have an attorney assigned . . . , and to submit a brief, and/or argue before the appellate court on any issues relating to the conviction or sentence.” However, the appeal waiver did not clarify that these were rights defendant would to a certain extent retain, as opposed to rights he had waived. Indeed, the written waiver stated that defendant had “waive[d] [his] rights to appeal voluntarily and knowingly after being fully apprised of [these] appellate rights.” The appeal waiver also stated that it was executed “in consideration of and as part of the plea agreement being entered into,” even though defendant had not pleaded guilty.

County Court sentenced defendant to time served.

On appeal, defendant contended, as a threshold matter, that the appeal waiver was invalid and, alternatively, that his claim that his Sixth Amendment right to counsel had been violated survived a valid waiver. Defendant then argued, among other things, that County Court had violated his constitutional right to counsel by requiring him to represent himself at trial, that he had not forfeited his right to counsel, that the curative instruction concerning his refusal to cooperate with counsel constituted reversible error, and that County Court was impermissibly biased.

In a decision that predated our opinion on appeal waivers in *People v Thomas* (34 NY3d 545 [2019]; see also *People v Bisoño*, 36 NY3d 1013 [2020]), the Appellate Division ruled that defendant’s appeal waiver was valid and affirmed the judgment (174 AD3d 1142, 1142-1143 [3d Dept 2019]). The Appellate Division assumed, without deciding, that defendant’s constitutional right to counsel argument survived his appeal waiver, but held that defendant had, by his behavior with successive assigned counsel, forfeited his right to counsel (see *id.* at 1143). The Court did not reach defendant’s remaining contentions, treating them as precluded by his appeal waiver (see *id.*).

A Judge of this Court granted defendant leave to appeal and we now reverse.

II.

We first consider whether defendant’s appeal waiver was valid. In *People v Thomas*, we resolved three consolidated ap-

peals, in which the defendants' waivers of the right to appeal contained mischaracterizations of the scope of the appellate rights each defendant had purportedly waived as a condition of their plea bargain. The Court reinforced the principle that "a waiver of the right to appeal is not an absolute bar to the taking of a first-tier direct appeal" (*Thomas*, 34 NY3d at 558, citing *People v Seaberg*, 74 NY2d 1, 11 [1989], *People v Callahan*, 80 NY2d 273, 280 [1992], and *People v Hansen*, 95 NY2d 227, 230-231 [2000]; accord *Garza v Idaho*, 586 US —, —, 139 S Ct 738, 744-745 [2019]). "[A]ppellate review is not waivable, despite a guilty plea, for issues involving jurisdictional matters or 'rights of a constitutional dimension that go to the very heart of the process'" of criminal prosecution (*Thomas*, 34 NY3d at 559 n 2, quoting *Hansen*, 95 NY2d at 230).

In two of the consolidated appeals, *People v Green* and *People v Lang*, we invalidated appeal waivers because in each case the County Court had mischaracterized the appellate rights waived as encompassing an absolute bar to a direct appeal and collateral relief, as well as loss of attendant rights to counsel and poor person relief (see *Thomas*, 34 NY3d at 565-566). For example, the written appeal waiver forms signed by Green and her attorneys stated that the defendant was waiving "all rights to appeal," including her rights to take an appeal, file a brief, have counsel appointed if she could not afford one, argue the appeal before an appellate court, and seek CPL article 440 relief to vacate the conviction or sentence (see *id.* at 554). Given the mischaracterizations of the appellate rights waived, we could not be certain that the defendants understood the nature of the waivers and therefore determined that the appeal waivers were involuntarily made and not enforceable (see *id.* at 565-566).

On the other hand, in the *Thomas* appeal, we upheld an appeal waiver, despite some imprecise, misleading language in the waiver suggesting a bar to all appellate rights, because it also contained "clarifying language in the same form that appellate review remained available for certain issues, . . . indicating, therefore, that the right to take an appeal was retained" (*id.* at 564). The written waiver form that Thomas and his attorney signed, after consultation, stated, incorrectly, that Thomas "waive[d] any and all rights to appeal including the right to file a notice of appeal from the judgment of conviction," yet expressly excepted any constitutional speedy trial claim as well as challenges to the legality of sentence,

competency to stand trial, and “the voluntariness of this plea and [appeal] waiver” (*id.* at 553). The appeal waiver was enforceable because “the totality of the circumstances reveals that the defendant understood the nature of the appellate rights being waived” (*id.* at 559).

[1] Unlike Thomas’s appeal waiver, and akin to those in *Green* and *Lang*, defendant’s waiver in the case before us did not contain “clarifying language . . . that appellate review remained available for certain issues” (*id.* at 564). Indeed, the written appeal waiver and the colloquy utterly failed to indicate that some rights to appeal would survive the waiver. Moreover, the written waiver implied that defendant was completely waiving his right “to prosecute [an] appeal as a poor person, and to have an attorney assigned” if indigent.*

Defendant’s appeal waiver thus mischaracterized the nature of the waiver of appeal by suggesting that the waiver included an absolute bar to the taking of a first-tier direct appeal and the loss of attendant rights to counsel and poor person relief (*see Bisono*, 36 NY3d at 1017-1018; *see generally People v Grimes*, 32 NY3d 302, 311-312 [2018]). Under the circumstances we cannot be certain that defendant understood the nature of the appeal waiver, and therefore the appeal waiver is not enforceable (*see Thomas*, 34 NY3d at 565-566).

Our conclusion that defendant’s appeal waiver is invalid obviates the need to decide whether a valid appeal waiver would have extinguished defendant’s claim that his right to counsel was violated at trial. We take no position on that question and proceed to consider whether, on the record before us, defendant forfeited his right to counsel.

III.

We have recognized that “egregious conduct by [a] defendant[] can lead to a deemed forfeiture of the fundamental right to counsel,” but only as a matter of “extreme, last-resort . . . analysis” (*People v Smith*, 92 NY2d 516, 521 [1998]). The record here falls short of establishing “egregious conduct” by defendant.

* It is true that County Court belatedly told defendant that if he still wished to appeal, then he had 30 days to do so and his attorney would help him “with that paperwork,” or alternatively County Court would assign an attorney to file the notice of appeal. However, these instructions to defendant were given only *after* defendant had executed the deficient appeal waiver.

This Court has not addressed the level of misconduct by a defendant that warrants the drastic measure of forfeiture of the right to counsel, but forfeiture has been upheld by intermediate appellate courts where the record demonstrated physically abusive and threatening acts by the defendants towards their counsel. For example, “by brutally assaulting his attorney, the fourth one appointed by the court, . . . [the] defendant forfeited his right to counsel” in *People v Gilchrist* (239 AD2d 306, 307 [1st Dept 1997], *lv denied* 91 NY2d 834 [1997]). Similarly, in *People v Wilkerson* (294 AD2d 298, 298 [1st Dept 2002], *lv denied* 98 NY2d 772 [2002]), the defendant forfeited his right to counsel “by spitting at and threatening his last attorney, after threatening prior attorneys and having attacked one of them.”

There can also be forfeiture of the right to counsel without assault or other physical aggression. Threatening or verbally abusive conduct may be sufficient. A defendant may forfeit the right to counsel because of a “persistent course of egregious conduct toward successive assigned counsel, consisting of threats and other abusive behavior” (*People v Cooper*, 128 AD3d 1431, 1433 [4th Dept 2015], *lv denied* 26 NY3d 966 [2015]; *see also e.g. People v Sloane*, 262 AD2d 431, 432 [2d Dept 1999], *lv denied* 93 NY2d 1027 [1999]).

On the other hand, mere raised voices, vociferous disagreement with an attorney over strategy, or accusations of incompetence do not rise to the level of egregious conduct constituting forfeiture of the right to counsel, especially when the defendant himself does not seek to dismiss the attorney (*compare People v McElveen*, 234 AD2d 228, 230 [1st Dept 1996], *lv denied* 89 NY2d 1097 [1997]). A defendant does not forfeit the right to counsel simply by being argumentative or uncooperative with counsel or by moving to reassign counsel “as a mere dilatory tactic” (*People v Issac*, 121 AD3d 816, 817-818 [2d Dept 2014], *lv denied* 24 NY3d 1220 [2015]). The right to counsel would be almost meaningless if every defendant who quarreled with their attorney about their defense or attempted to delay the proceedings forfeited the right to counsel.

[2] There may be circumstances where a defendant who refuses to cooperate with successive assigned attorneys is ultimately deemed to have forfeited the right to assigned counsel, although such an individual must be afforded the opportunity to retain counsel. The record on appeal, however, does not permit the conclusion that this is such a case. There

is record evidence of only two attorneys who asked to be relieved due to difficulties with defendant. Those were DiStefano and Hartjen, who complained of defendant's raised voice and lack of cooperation, but provided no evidence of threats or other abusive conduct. County Court's own orders relieving Miasek, Taylor, Carlson, and Scott cited conflict of interest, illness, or departure from the state, not attorney-client animosity. Such factors were beyond defendant's control.

We conclude that there is no support in the record for the lower courts' determination that defendant's conduct with successive assigned counsel was so egregious as to constitute forfeiture of the right to counsel.

IV.

"That is the wonder of the law: that it moves case by case, seeking justice for each individual, but that any single case may be part of some larger movement" (Anthony Lewis, *Gideon's Trumpet* 219 [1989] [first published 1964]). Defendant was forced to undergo a criminal trial without counsel (*see generally People v Silburn*, 31 NY3d 144, 152 [2018] [noting that a standby or advisory counsel is not a cocounsel]). The law of criminal procedure has left a process like this far behind. The proper remedy is a new trial.

In light of our holdings, there is no need for us to reach any issue related to defendant's allegations of judicial bias.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge DiFiore and Judges Rivera, Garcia, Wilson, Singas and Cannataro concur.

Order reversed and a new trial ordered.

[177 NE3d 973, 155 NYS3d 548]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS TORRES, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVE LEWIS, Appellant.

Argued August 31, 2021; decided October 12, 2021

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered September 23, 2019. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Steven M. Statsinger, J., at motion to dismiss; Joanne B. Watters, J., at plea and sentencing), which had convicted defendant, upon his plea of guilty, of failure to exercise due care to avoid collision with a pedestrian and failure to yield to a pedestrian.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered October 24, 2019. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Heidi C. Cesare, J.), which had convicted defendant, after a nonjury trial, of failure to exercise due care to avoid collision with a bicyclist and failure to yield to a bicyclist.

People v Torres, 65 Misc 3d 19, affirmed.

People v Lewis, 65 Misc 3d 141(A), 2019 NY Slip Op 51711(U), affirmed.

HEADNOTES

Constitutional Law — Validity of Statute — Local Law Using Ordinary Negligence Mens Rea to Impose Criminal Liability

1. The ordinary negligence mens rea of Administrative Code of the City of New York § 19-190 (the Right of Way Law), which makes it a misdemeanor for a driver, while “fail[ing] to exercise due care,” to make “contact with” a pedestrian or bicyclist who has the “right of way” and thereby cause “physical injury” (Administrative Code of City of NY § 19-190 [a]-[c]), does not violate due process. The United States Supreme Court has never articulated a general constitutional doctrine of mens rea, or held that an ordinary negligence mens rea may never be used as a basis for criminal liability. Moreover, the test for determining if a law possesses the certainty and definiteness

mandated by due process is whether the language of the statute would indicate to reasonable persons the nature of the conduct it proscribes. As the path along which a person must proceed to avoid the charge of negligence is clear, the mens rea standard is not void for vagueness.

Statutes — Preemption by State — Local Law Using Ordinary Negligence Mens Rea to Impose Criminal Liability

2. Administrative Code of the City of New York § 19-190 (the Right of Way Law), which makes it a misdemeanor for a driver, while “fail[ing] to exercise due care,” to make “contact with” a pedestrian or bicyclist who has the “right of way” and thereby cause “physical injury” (Administrative Code of City of NY § 19-190 [a]-[c]), is not preempted, either on a field or conflict basis, by the Penal Law. The provisions of the Penal Law “govern the construction of and punishment for any offense defined outside” of the Penal Law, “[u]nless otherwise expressly provided, or unless the context otherwise requires” (Penal Law § 5.05 [2]). Penal Law §§ 15.00 and 15.05, which list and define four “culpable mental states,” expressly provide otherwise by making clear that they are “applicable to this chapter” only. Further, the legislature has used an ordinary negligence mens rea for offenses defined outside the Penal Law, and has neither expressly nor by implication articulated its intent to occupy the field. Moreover, Penal Law § 15.15 sets forth the rule of statutory construction that, unless the legislature has clearly indicated its intent to make a statutory offense one of strict liability, a court should read a culpable mental state into a statute that is silent on mens rea. The Right of Way Law is not silent on mens rea; instead, it specifies a mens rea of ordinary negligence. The rule of construction contained in Penal Law § 15.15 (2), governing statutes that omit any mens rea, cannot be used to override that designation, and, therefore, there is no conflict with the local law.

Statutes — Preemption by State — Local Law Imposing Stricter Penalty for Same Conduct

3. Administrative Code of the City of New York § 19-190 (the Right of Way Law), which makes it a misdemeanor for a driver, while “fail[ing] to exercise due care,” to make “contact with” a pedestrian or bicyclist who has the “right of way” and thereby cause “physical injury” (Administrative Code of City of NY § 19-190 [a]-[c]), does not conflict with state law by punishing more severely the same conduct as proscribed by Vehicle and Traffic Law § 1146. The Vehicle and Traffic Law authorizes New York City to pass laws relating to “traffic on or pedestrian use of any highway,” including “[r]ight of way of vehicles and pedestrians” (Vehicle and Traffic Law § 1642 [a] [10]). Moreover, the mere fact that a local law may deal with some of the same matters touched upon by state law does not render the local law invalid. For a local law to be invalid pursuant to the conflict preemption doctrine, the state must specifically permit the conduct the local law prohibits or provide some other indication that deviation from state law is prohibited. The Right of Way Law imposes liability on a driver who causes physical injury to a pedestrian or bicyclist while failing to exercise due care. The state law does not permit this conduct, nor is there any indication that the City is somehow constrained in prohibiting it. Although the Right of Way Law creates a misdemeanor offense for a first-time offender whereas Vehicle and Traffic Law § 1146 creates only a traffic infraction for such an offender, a local law’s imposition of a stricter penalty than a state law does not amount to a conflict for preemption purposes.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Automobiles and Highway Traffic §§ 301, 321;
AM JUR 2d Criminal Law §§ 112, 116, 121; AM JUR 2d
Municipal Corporations, Counties, and Other Political
Subdivisions §§ 299, 300, 305–307, 364–367.

McKINNEY'S, Penal Law §§ 5.05 (2); 15.00, 15.05, 15.15;
Vehicle and Traffic Law §§ 1146, 1642 (a) (10).

NY JUR 2d Automobiles and Other Vehicles §§ 721, 802,
812, 854, 1079; NY JUR 2d Counties, Towns, and Munic-
ipal Corporations §§ 344–347; NY JUR 2d Criminal Law:
Substantive Principles and Offenses §§ 4, 20, 26, 31.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic;
Bicycles; Certainty and Definiteness; Due Process; Mens
Rea; Municipal Corporations; Pedestrians; Preemption.

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negligence & vague!

POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Katharine Skolnick of counsel), for appellant in the first above-entitled action. I. Administrative Code of the City of New York § 19-190 (b) is (A) preempted by both the Penal Law and Vehicle and Traffic Law; and (B) unconstitutional because it criminalizes an act committed without due care, a civil negligence standard involving a significantly lower degree of culpability than the traditional categories of criminal mens rea. (*People v Angelo*, 246 NY 451; *People v Paris*, 138 AD2d 534; *Staples v United States*, 511 US 600; *People v Rosenheimer*, 209 NY 115; *People v Boutin*, 75 NY2d 692; *People v Ladd*, 89 NY2d 893; *People v Montanez*, 41 NY2d 53; *People v M&H Used Auto Parts & Cars, Inc.*, 22 AD3d 135; *People v Diack*, 24 NY3d 674; *Incorporated Vil. of Nyack v Daytop Vil.*, 78 NY2d 500.) II. By not advising Carlos Torres of the length of the term of his conditional discharge, the court violated his right to due process. (*People v Burwell*, 53 NY2d 849; *People v Peque*, 22 NY3d 168; *People v Harnett*, 16 NY3d 200; *People v*

Ford, 86 NY2d 397; *People v Oduro*, 126 AD3d 523; *People v Tyrell*, 22 NY3d 359; *People v Conceicao*, 26 NY3d 375; *People v Louree*, 8 NY3d 541; *People v Scala*, 26 NY2d 753.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Samuel Z. Goldfine* and *Christopher P. Marinelli* of counsel), for respondent in the first above-entitled action. I. The Appellate Term properly determined that Administrative Code of the City of New York § 19-190 was constitutional and was not preempted by the Vehicle and Traffic Law or the Penal Law. (*People v Lee*, 58 NY2d 491; *People v Levin*, 57 NY2d 1008; *County Court of Ulster County v Allen*, 442 US 140; *Matter of Sarah K*, 66 NY2d 223; *People v Di Raffaele*, 55 NY2d 234; *People v Tichenor*, 89 NY2d 769; *People v Pagnotta*, 25 NY2d 333; *People v Feingold*, 7 NY3d 288; *People v Williams*, 24 NY3d 1129; *People v Matos*, 19 NY3d 470.) II. Defendant's guilty plea was knowing, voluntary, and intelligent. (*People v Lopez*, 71 NY2d 662; *People v Conceicao*, 26 NY3d 375; *People v Allen*, 39 NY2d 916; *People v Roopchand*, 107 AD2d 35, 65 NY2d 837; *People v Prescott*, 66 NY2d 216; *Padilla v Kentucky*, 559 US 356; *People v Harris*, 61 NY2d 9; *People v Alexander*, 19 NY3d 203; *People v Tyrell*, 22 NY3d 359; *People v Harnett*, 16 NY3d 200.)

Nathaniel Z. Marmur, The Law Offices of Nathaniel Z. Marmur, PLLC, New York City, for appellant in the second above-entitled action. I. The trial court erred in charging a civil standard of negligence rather than the criminal standard required by the Penal Law. (*People v Urena*, 54 Misc 3d 978; *People v Washington*, 54 Misc 3d 802; *Matter of Russell v Adduci*, 140 AD2d 844; *People v Rosenheimer*, 209 NY 115; *People v Angelo*, 246 NY 451; *People v Paris*, 138 AD2d 534; *People v Ladd*, 89 NY2d 893; *People v Conway*, 6 NY3d 869; *People v Montanez*, 41 NY2d 53; *People v Haney*, 30 NY2d 328.) II. The evidence was insufficient to prove criminal negligence. (*People v Hawkins*, 11 NY3d 484; *Matter of Suarez v Byrne*, 10 NY3d 523; *People v Lane*, 7 NY3d 888; *People v Ladd*, 89 NY2d 893; *People v Angelo*, 246 NY 451; *People v Conway*, 6 NY3d 869; *People v Futterman*, 86 AD2d 70; *People v Cabrera*, 10 NY3d 370; *People v Smith*, 62 Misc 3d 12.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Amanda Katherine Regan* and *Christopher P. Marinelli* of counsel), for respondent in the second above-entitled action. I. Defendant's guilt was proved by legally sufficient evidence.

(*People v Gordon*, 23 NY3d 643; *People v Danielson*, 9 NY3d 342; *People v Gray*, 86 NY2d 10; *People v Santos*, 86 NY2d 869; *People v Cabrera*, 10 NY3d 370; *People v Mitchell*, 213 AD2d 562; *People v Senisi*, 196 AD2d 376; *People v Boutin*, 75 NY2d 692; *People v Paul V.S.*, 75 NY2d 944.) II. The court properly charged a civil negligence standard under Administrative Code of the City of New York § 19-190 and Vehicle and Traffic Law § 1146. (*People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *People v Davidson*, 98 NY2d 738; *People v Iannelli*, 69 NY2d 684; *Matter of Van Berkel v Power*, 16 NY2d 37; *People v Russell*, 71 NY2d 1016; *People v Rodriguez*, 47 AD3d 406; *People v Tichenor*, 89 NY2d 769; *People v Pagnotta*, 25 NY2d 333; *People v Walters*, 64 Misc 3d 862; *People v Urena*, 54 Misc 3d 978.)

James E. Johnson, Corporation Counsel of the City of New York, New York City (*MacKenzie Fillow*, *Richard Dearing* and *Devin Slack* of counsel), for City of New York, amicus curiae in the first and second above-entitled actions. I. New York City's Right of Way Law is constitutional. (*People v Grimes*, 32 NY3d 302; *People v Kohl*, 72 NY2d 191; *Martin v Ohio*, 480 US 228; *People v Roberts*, 31 NY3d 406; *Powell v Texas*, 392 US 514; *Copeland v Vance*, 893 F3d 101; *Lambert v California*, 355 US 225; *United States v Balint*, 258 US 250; *People v Grogan*, 260 NY 138; *Staples v United States*, 511 US 600.) II. State law allows New York City to protect vulnerable road users from unsafe drivers. (*Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601; *Staples v United States*, 511 US 600; *Elonis v United States*, 575 US 723; *People v M&H Used Auto Parts & Cars, Inc.*, 22 AD3d 135; *People v Sandgren*, 302 NY 331; *Town of Concord v Duwe*, 4 NY3d 870; *Vatore v Commissioner of Consumer Affairs of City of N.Y.*, 83 NY2d 645; *Zakrzewska v New School*, 14 NY3d 469.)

OPINION OF THE COURT

GARCIA, J.

In a 14-year period ending in 2013, New York City recorded more than 4,700 traffic-related fatalities. Many of the victims were pedestrians and bicyclists. In response, the City launched a “Vision Zero”¹ initiative in 2014 that included the enactment of Administrative Code of the City of New York § 19-190, known

1. “Vision Zero” is an approach to road safety, developed in Sweden, based upon the principle that it “can never be ethically acceptable that people are killed or seriously injured when moving within the road transport system” (Claes Tingvall & Narelle Haworth, Monash University Accident Research

as the “Right of Way Law.” That law makes it a misdemeanor for a driver, while “fail[ing] to exercise due care,” to make “contact with” a pedestrian or bicyclist who has the “right of way” and thereby cause “physical injury” (Administrative Code of City of NY § 19-190 [a]-[c]). Defendants, each convicted of violating the Right of Way Law, claim that the statute is unconstitutional, arguing that it violates due process by employing an “ordinary negligence” mens rea and is preempted by state law. We reject those challenges and affirm in each case.

I.

These appeals involve fatal accidents on Manhattan streets. In *Torres*, defendant, driving a truck, made a right turn, striking and killing a pedestrian inside a crosswalk with the “WALK” signal in her favor. In *Lewis*, defendant was at the wheel of a bus that struck and ran over a bicyclist, causing the rider to suffer fatal injuries. Each defendant was charged with violating the Right of Way Law, a misdemeanor, and Vehicle and Traffic Law § 1146 (c) (1), a traffic infraction.²

Both defendants moved on similar grounds to dismiss the count charging a violation of the Right of Way Law. Defendants asserted that the Right of Way Law’s ordinary negligence mens rea violates due process because the standard is both impermissibly vague and legally insufficient for imposing criminal liability. Defendants also made two preemption arguments, asserting that the Right of Way Law impermissibly punishes more severely the same conduct proscribed by Vehicle and Traffic Law § 1146, and that the Right of Way Law’s use of ordinary negligence as a culpable mental state is prohibited by article 15 of the Penal Law. In each case, the court denied defendant’s motion.

Torres, by plea, and Lewis, following a bench trial, were convicted of violating Vehicle and Traffic Law § 1146 (c) (1) and the Right of Way Law. On appeal, both defendants reasserted their challenges to the latter statute’s validity. Adopting the

Centre, *Vision Zero—An Ethical Approach to Safety and Mobility* [1999] [emphasis omitted], available at <https://www.monash.edu/muarc/archive/our-publications/papers/visionzero> [last accessed Sept. 19, 2021]).

2. Vehicle and Traffic Law § 1146 makes it a traffic infraction for a driver, while “failing to exercise due care,” to collide with a pedestrian or bicyclist and cause either “physical injury” (Vehicle and Traffic Law § 1146 [b] [1]) or “serious physical injury” (*id.* § 1146 [c] [1]). Fines are enhanced in the case of serious physical injury (*id.* § 1146 [c] [1]), while recidivists face misdemeanor liability (*id.* § 1146 [d]).

same analysis in each case, the Appellate Term unanimously rejected those arguments and affirmed (see *People v Torres*, 65 Misc 3d 19, 22-23 [App Term, 1st Dept 2019]; *People v Lewis*, 65 Misc 3d 141[A], 2019 NY Slip Op 51711[U], *1 [App Term, 1st Dept 2019]). With respect to the due process claim, the court held that, given that statutes imposing strict liability, “[p]articularly with regard to public welfare offenses,” have passed muster, “there is no constitutional infirmity in an offense that requires proof of defendant’s failure to exercise due care, a more culpable mental state” (*Torres*, 65 Misc 3d at 21-22). The court next rejected the argument that the Right of Way Law is preempted by Vehicle and Traffic Law § 1146, applying the rule that a local law that “merely provides a greater penalty than state law does not run afoul of the conflict preemption doctrine” (*id.* at 22). Lastly, the court held that the list of culpable mental states found in article 15 of the Penal Law is inapplicable to offenses “defined outside the Penal Law” (*id.* at 23).

A Judge of this Court granted leave to appeal in each case.

II.

Defendants raise the same constitutional arguments on appeal to this Court as were raised below: that the Right of Way Law violates due process and is preempted by state law.

A.

We consider first defendants’ due process challenge, namely that the State and Federal Constitutions require more than ordinary negligence as a culpable mental state for imposing criminal liability, relying primarily on the Supreme Court’s decision in *Elonis v United States* (575 US 723 [2015]).³

As an initial matter, the Supreme Court “has never articulated a general constitutional doctrine of *mens rea*” (*Powell v Texas*, 392 US 514, 535 [1968]; see *Copeland v Vance*, 893 F3d 101, 122 [2d Cir 2018] [“the Supreme Court has been at pains not to constitutionalize *mens rea*”], *cert denied* 587 US —, 139 S Ct 2714 [2019]). And even strict liability offenses, which require no culpable mental state, have been held by that Court to pass constitutional muster (see e.g. *United States v United States Gypsum Co.*, 438 US 422, 437 [1978] [explaining that

3. Defendants make no independent argument under the State Constitution (see *People v Hansen*, 99 NY2d 339, 344, 345 n 4 [2003]).

“strict-liability offenses are not unknown to the criminal law and do not invariably offend constitutional requirements”]; see also *Smith v California*, 361 US 147, 150 [1959]).

[1] Over the years, New York has codified a number of strict liability crimes (Penal Law §§ 15.10, 15.15 [2]; see *People v Byrne*, 77 NY2d 460, 463 [1991]). We have long recognized the constitutionality of such strict liability offenses (see e.g. *People v Persce*, 204 NY 397, 402-403 [1912] [holding that a law, making possession of certain “dangerous and foul” weapons criminal “itself,” was “no infringement of the Constitution”]). Indeed, in recognizing the validity of “public welfare offenses” that do not require a showing of any mens rea, the Supreme Court cited a decision by this Court, rejecting the argument that an element of conscious wrongdoing, which is required in the prosecution of “infamous crimes,” was also required to establish minor criminal violations of regulations governing tenement houses or child labor laws (see *Morissette v United States*, 342 US 246, 257-258 [1952], citing *People ex rel. Price v Sheffield Farms-Slawson-Decker Co.*, 225 NY 25, 32-33 [1918]; *Tenement House Dept. of City of N.Y. v McDevitt*, 215 NY 160, 168 [1915]). Our legislature has also enacted laws outside the Penal Law that impose criminal liability based on ordinary negligence (see e.g. Vehicle and Traffic Law § 1146 [imposing criminal liability on a driver who, while failing to exercise due care, collides with a pedestrian or bicyclist and causes either physical injury or serious physical injury]; Agriculture and Markets Law § 370 [imposing criminal liability on an owner of a dangerous animal who fails to exercise due care in protecting the public from such animal]).⁴

We disagree with defendants’ suggestion that the Supreme Court’s decision in *Elonis* somehow requires reconsideration of our prior case law. *Elonis* involved a federal statute that was

4. This Court has also expressly acknowledged, albeit in dictum, that statutes may, in certain circumstances, impose criminal liability based on ordinary negligence (see *People v Haney*, 30 NY2d 328, 334 n 7 [1972] [(c)riminal liability for death caused by ordinary negligence is sometimes imposed by statute” and “most of these statutes are confined to deaths arising out of automobile accidents”]). Moreover, other states have likewise recognized that ordinary negligence can supply the mental state necessary for criminal liability (see e.g. *Hoover v State*, 958 A2d 816, 821 [Del 2008] [noting that “(s)everal state courts have recognized the power of a legislature to define a crime based upon ordinary negligence” (internal quotation marks omitted)]; *State v Hazelwood*, 946 P2d 875, 879 [Alaska 1997] [(I)t is firmly established in our jurisprudence that a mental state of simple or ordinary negligence can support a criminal conviction”]).

silent as to any mens rea (see 575 US at 732-737, citing 18 USC § 875 [c] [sending threatening communications]). That silence led the Court to apply the well-settled rule of statutory construction that “mere omission from a criminal enactment of any mention of criminal intent should not be read as dispensing with it” (*id.* at 734 [internal quotation marks omitted]). The Court declined, as a matter of statutory interpretation, to have liability under the statute at issue turn on whether a “reasonable person” would regard the communication as a threat (*Elonis*, 575 US at 738 [internal quotation marks omitted]). But in doing so, the Court did not hold that an ordinary negligence mens rea may never be used as a basis for criminal liability (see *id.* at 741; see also *United States v Wilson*, 880 F3d 80, 86 [3d Cir 2018] [rejecting an “attempt to extend *Elonis*’s reasoning to” another statute], *cert denied* 584 US —, 138 S Ct 2586 [2018]; *United States v Kirsch*, 903 F3d 213, 232 [2d Cir 2018], *cert denied* 586 US —, 139 S Ct 1272 [2019]). There is no need for us to infer a negligence standard—or indeed supply any standard—in this case. Unlike the statute in *Elonis*, the Right of Way Law explicitly provides the applicable mens rea—ordinary negligence.

We therefore reject defendants’ argument that the Right of Way Law imposes criminal liability based on a mens rea that is insufficient as a matter of law to support criminal liability.

Nor is the mens rea standard void for vagueness. Our well-established test for determining if “a law possesses the certainty and definiteness mandated by due process is whether the language of the statute would indicate to reasonable persons the nature of the conduct it proscribes” (*People v Hardy*, 47 NY2d 500, 505 [1979]). Failure to exercise due care is, of course, firmly established as the standard of ordinary negligence (see *United States v Neustadt*, 366 US 696, 706 [1961] [“the duty to use due care” is “the traditional and commonly understood legal definition of the tort of neglig(en)ce” (internal quotation marks omitted)]; *Saarinen v Kerr*, 84 NY2d 494, 501 [1994] [“a lack of ‘due care under the circumstances’ ” is “the showing typically associated with ordinary negligence”]). As this Court noted in *People v Grogan* (260 NY 138 [1932]):

“The path has been pretty well cut out and emblazoned along which a [person] must proceed to avoid the charge of negligence. A statute, therefore, which made ‘negligent’ driving of an automobile, causing

injury or danger to another, a ‘misdemeanor,’ would, we may assume, be constitutional. But a statute falling short of this definiteness would cross the line as we have tried to draw it, and place the offense among those vague attempts to set up crimes which have resulted in unconstitutional legislation” (*id.* at 146-147).

The path here being clearly marked, defendants’ vagueness challenge fails.

B.

Defendants’ preemption arguments must be examined in the context of our well-established rules regarding constitutional and statutory “home rule” provisions. “Although a local government is constitutionally empowered to enact local laws relating to the welfare of its citizens through its police power, it is prohibited from exercising that power through the adoption of local laws that are inconsistent with the New York State Constitution or any general law of the state” (*People v Diack*, 24 NY3d 674, 678-679 [2015], citing NY Const, art IX, § 2 [c]; Municipal Home Rule Law § 10 [1] [i], [ii] [a] [12]). Accordingly, although broad, the law-making power conferred upon local governments is limited by the “preemption doctrine” (*Albany Area Bldrs. Assn. v Town of Guilderland*, 74 NY2d 372, 377 [1989]). Conflict preemption prohibits a local government from adopting a law that is “inconsistent with” state law (*New York State Club Assn. v City of New York*, 69 NY2d 211, 217 [1987]). Field preemption prohibits a local government from legislating in a field or area of the law where the “[l]egislature has assumed full regulatory responsibility” (*DJL Rest. Corp. v City of New York*, 96 NY2d 91, 95 [2001]).

Defendants do not challenge the general authority of the City to enact local traffic laws or to make the violation of those laws a crime.⁵ Rather, defendants maintain that the City was prohibited by certain provisions in the Penal Law and the Vehicle and Traffic Law from enacting a law that imposes criminal liability based on a mens rea not specifically enumerated in

5. We agree with our concurring colleague that this issue was not raised in this case and that the arguments discussed in the concurrence have not been made by the parties (*see* concurring op at 269-270, 273; *see generally* *Matter of Lewis v Klein*, 45 NY2d 930, 932 [1978] [“In disposing of this appeal the court passes on no issues not raised in the briefs presented to it and is concerned exclusively with (the) issues raised”]).

article 15 of the Penal Law. We conclude that the Right of Way Law does not run afoul of the preemption doctrine.

1.

With respect to the Penal Law, defendants argue that various provisions of article 15, which define four culpable mental states, demonstrate an intent by the legislature to occupy the field of culpable mental states acceptable as a basis for criminal liability. Because the Right of Way Law imposes criminal liability based on a mens rea not listed in article 15—ordinary negligence—defendants maintain that the statute conflicts with the Penal Law and encroaches on an area of law where the legislature has assumed full responsibility. We disagree.

Article 15 of the Penal Law lists and defines four “culpable mental states”—“intentionally,” “knowingly,” “recklessly,” and “criminal negligence” (Penal Law §§ 15.00 [6]; 15.05). However, strict liability is also contemplated by article 15: “[t]he minimal requirement for criminal liability is the performance by a person of conduct which includes a voluntary act or the omission to perform an act which [such person] is physically capable of performing,” and, “[i]f such conduct is all that is required for commission of a particular offense, . . . such offense is one of ‘strict liability’ ” (Penal Law § 15.10).

Based on these provisions, defendants assert that the Penal Law’s list of culpable mental states is exhaustive, and any offense defined within or outside the Penal Law, unless it is one of strict liability, must incorporate one of the four culpable mental states. Assuming, for the sake of argument, that article 15 can be interpreted as limiting the culpable mental states that may be used to impose criminal liability, that purported constraint would apply to only crimes defined within the Penal Law itself.

[2] The provisions of the Penal Law “govern the construction of and punishment for any offense defined outside” of the Penal Law, “[u]nless otherwise expressly provided, or unless the context otherwise requires” (Penal Law § 5.05 [2]). The two key provisions at issue, Penal Law §§ 15.00 (“Culpability; definitions of terms”) and 15.05 (“Culpability; definitions of culpable mental states”), expressly provide otherwise by making clear that they are “applicable to this chapter” only. Further contradicting defendants’ interpretation of article 15 is the legislature’s own use of an ordinary negligence mens rea for offenses defined outside the Penal Law. For example, as dis-

cussed, Vehicle and Traffic Law § 1146 and Agriculture and Markets Law § 370—which were enacted after the relevant provisions in article 15 of the Penal Law—both employ an ordinary negligence standard for imposing criminal liability. Clearly, in defining these offenses, the legislature did not feel itself limited to the culpable mental states enumerated in the Penal Law. Accordingly, the legislature has neither expressly nor by implication articulated its intent to occupy this field (*see Jancyn Mfg. Corp. v County of Suffolk*, 71 NY2d 91, 98 [1987] [“No preemptive intent is evident from either the (l)egislature’s declaration of State policy in (the at-issue statute) or the statutory scheme which has been enacted”]).

Nor does Penal Law § 15.15—which governs “[c]onstruction of statutes with respect to culpability requirements”—in any way prohibit what would otherwise be permitted. Indeed, contrary to defendants’ argument, Penal Law § 15.15 (2) neither evinces the legislature’s intent to occupy the field nor demonstrates that the list of mental states set forth in Penal Law article 15 was meant to be exclusive. As defendants correctly point out, Penal Law § 15.15 (2) applies to offenses “defined both in and outside” the Penal Law. However, that provision does not mandate that the list of culpable mental states designated in article 15 is an exhaustive one that applies to offenses defined outside the Penal Law; rather, it merely sets forth a well-settled rule of statutory construction that reflects the Penal Law’s general approach to strict liability offenses: unless the legislature has clearly indicated its intent to make a statutory offense one of strict liability, a court should read a culpable mental state into a statute that is *silent* on mens rea (*see* William C. Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Penal Law § 15.00 [explaining that the rule codified in Penal Law § 15.15 (2) was enacted because the Penal Law “does not favor” strict liability offenses]; *see generally Elonis*, 575 US at 734-736).⁶ The Right of Way Law is not silent on mens rea; instead, it specifies a mens rea of ordinary negligence. The rule of construction contained in Penal Law § 15.15

6. The provision reads, in relevant part, as follows:

“Although no culpable mental state is expressly designated in a statute defining an offense, a culpable mental state may nevertheless be required for the commission of such offense, or with respect to some or all of the material elements thereof, if the proscribed conduct necessarily involves such culpable mental state. A statute defining a crime, unless clearly indicating a legislative intent to impose strict liability, should be construed

(n. cont’d)

(2), governing statutes that omit any mens rea, cannot be used to override that designation, and, therefore, there is no conflict with the local law.

Contrary to defendants' claim, the Right of Way Law is not preempted, either on a field or conflict basis, by the Penal Law.

2.

Defendants assert that the legislature intended for the Vehicle and Traffic Law to occupy the field of motor vehicle regulation, and that the Right of Way Law conflicts with the state law by punishing more harshly the same conduct as Vehicle and Traffic Law § 1146. Again, we disagree.

[3] The provisions of the Vehicle and Traffic Law are intended to be "uniform throughout this state" (Vehicle and Traffic Law § 1600; *see also* § 1604). And no local government or municipality may "enact or enforce any local law, ordinance, order, rule or regulation in conflict with the provisions" of the Vehicle and Traffic Law unless "expressly authorized" to do so (Vehicle and Traffic Law § 1600). However, the Vehicle and Traffic Law also authorizes New York City to pass laws relating to, among other things, "traffic on or pedestrian use of any highway," including "[r]ight of way of vehicles and pedestrians" (Vehicle and Traffic Law § 1642 [a] [10]). The Right of Way Law falls within this delegation of authority, defeating defendants' field preemption claim.

Defendants' conflict preemption claim fares no better. As we made clear in rejecting a preemption challenge to a city ordinance making it a misdemeanor to possess an imitation pistol, "[t]he mere fact that a local law may deal with some of the same matters touched upon by State law does not render the local law invalid" (*People v Judiz*, 38 NY2d 529, 531-532 [1976] [internal quotation marks omitted]). For a local law to be invalid pursuant to the conflict preemption doctrine, the State must specifically permit the conduct the local law prohibits or provide "some other indication that deviation from state law is prohibited" (*Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601, 617-618 [2018]). Such is not the case here. As discussed, the Right of Way Law imposes liability on a driver who causes physical injury to a pedestrian or bicyclist while failing to exercise due care (*see Administra-*

as defining a crime of mental culpability" (Penal Law § 15.15 [2]).

tive Code of City of NY § 19-190 [a]-[c]). The state law does not permit this conduct, nor is there any indication that the City is somehow constrained in prohibiting it (*see* Vehicle and Traffic Law § 1146 [b] [1]).

In any event, even accepting defendants’ description of the purported “conflict”—that the Right of Way Law punishes more harshly the same conduct as Vehicle and Traffic Law § 1146—defendants’ preemption argument fails. Indeed, although the Right of Way Law creates a misdemeanor offense for a first-time offender (*see* Administrative Code of City of NY § 19-190 [b]), whereas Vehicle and Traffic Law § 1146 creates only a traffic infraction for such an offender (*see* Vehicle and Traffic Law § 1146 [b] [1]; [c] [1]), we have held that a local law’s imposition of a stricter penalty than a state law does not amount to a conflict for preemption purposes (*see Zakrzewska v New School*, 14 NY3d 469, 480 [2010] [“A local law may, however, provide a greater penalty than state law”]; *see e.g. People v Lewis*, 295 NY 42, 50-51 [1945] [Administrative Code of the City of New York provision imposing “heavier penalties” than equivalent state law is not a difference “of such a character as to render one inconsistent with the other”]). In sum, the Right of Way Law does not conflict with section 1146.

III.

The City, acting pursuant to a delegation of police power by the State, enacted the Right of Way Law to address “the epidemic of traffic fatalities and injuries on [its] streets” (City of New York, *Vision Zero Action Plan* at 3 [2014], <https://www1.nyc.gov/assets/visionzero/downloads/pdf/nyc-vision-zero-action-plan.pdf>, available at <https://perma.cc/VW4Z-WGJ2> [last accessed Sept. 19, 2021]). We hold that the law is a valid exercise of that delegated power (*see Judiz*, 38 NY2d at 531-532).

Defendants’ remaining contentions are unpreserved.

Accordingly, in each case, the order of the Appellate Term should be affirmed.

WILSON, J. (concurring). I join the majority’s decision in full. As the majority notes, Mr. Torres and Mr. Lewis “do not challenge the general authority of the City to enact local traffic laws or to make the violation of those laws a crime” (majority op at 265). I write separately because the basis for the City’s authority to criminalize traffic infractions is unclear: New

York's Vehicle and Traffic Law may bar cities from attaching criminal sanctions to certain traffic violations.

As an initial observation, although I agree that criminal liability could rest on an ordinary negligence standard instead of one of the traditional types of *mens rea*, such statutes are exceedingly rare. Further, if New York City intended to impose criminal liability by use of a civil negligence standard, it has not done so in a straightforward way, but instead has articulated a lack of negligence as an exception to liability. The unusualness of the City's action does not render it unauthorized, but it might inform the way in which the relevant state laws should be interpreted.

Two provisions in the state's Vehicle and Traffic Law suggest limits to cities' regulation of traffic through criminal sanctions. Neither appellant raised those provisions as a ground for reversal. First, Vehicle and Traffic Law § 155 defines the term "traffic infraction" as a violation of most provisions of the Vehicle and Traffic Law "or of any law, ordinance, order, rule or regulation regulating traffic" that is "not declared by this chapter or other law of this state to be a misdemeanor or a felony." Section 155 further states that "[a] traffic infraction is not a crime and the punishment imposed therefor shall not be deemed for any purpose a penal or criminal punishment and shall not affect or impair the credibility as a witness or otherwise of any person convicted thereof." Vehicle and Traffic Law § 1800 echoes section 155: "[i]t is a traffic infraction for any person to violate any of the provisions of this chapter or of any local law, ordinance, order, rule or regulation adopted pursuant to this chapter, unless such violation is by this chapter or other law of this state declared to be a misdemeanor or a felony" (Vehicle and Traffic Law § 1800 [a]). A plain reading of Vehicle and Traffic Law §§ 155 and 1800 suggests that unless the State has determined that a particular violation is a misdemeanor or felony, no "local law, ordinance, order, rule or regulation" can transform it into one—it must be classified as a "traffic infraction." Thus, Vehicle and Traffic Law §§ 155 and 1800 may preempt cities from making traffic violations a crime.

Under that reading, the Vehicle and Traffic Law would prohibit New York City from criminalizing the conduct set out in Administrative Code of the City of New York § 19-190, known as the Right of Way Law. Section 19-190 makes it a misdemeanor for a driver to strike and physically injure a pedestrian or bicyclist who has the right of way unless the driver exercised

due care (Administrative Code § 19-190 [a], [b], [c]). The law of New York State, however, does not make that conduct a misdemeanor or a felony. Indeed, Vehicle and Traffic Law § 1146 makes a similar, though not identical, violation a “traffic infraction,” which under Vehicle and Traffic Law § 155 is not a crime (Vehicle and Traffic Law §§ 1146 [a], [b], [c]; 155).

The legislative history suggests that a concern about over-criminalizing traffic violations motivated the legislature to adopt the provisions in Vehicle and Traffic Law §§ 155 and 1800. The relevant provisions were adopted in 1934. Assembly Member James R. Robinson, who introduced the provisions, described the “principal object” of his bill as “the removal of criminal stigma which now attaches to all minor traffic violations” by “set[ting] up a new offense known as ‘traffic infraction’” to avoid making individuals who violate traffic regulations guilty of misdemeanors (Letter from James R. Robinson, Assembly Member, to Charles Poletti, Counsel to Governor Herbert H. Lehman, May 7, 1934, Bill Jacket, L 1934, ch 485 at 19). Assembly Member Robinson introduced the bill at the request of the New York State Magistrates Association and requested Judge Francis Bergan, a member of that association,¹ to submit a memorandum in support of the bill to the Governor (*id.*). In his memorandum, Judge Bergan explained that he and many other judges who oversaw traffic violations felt “that a large portion of such violations are not criminal in nature, and that no stigma of crime should be attached to the violation[s] beyond the actual punishment or penalty imposed by the Court” (Letter and Mem from Justice Francis Bergan, Police Court, City of Albany, to Governor Herbert H. Lehman, Apr. 25, 1934, Bill Jacket, L 1934, ch 485 at 6). The bill’s purpose, according to Judge Bergan, was to create “a new offense known as ‘traffic infraction,’ which is specifically non-criminal” in order to “prevent . . . criminal stigma from attaching to persons” convicted of minor traffic violations (*id.* at 7). Judge Bergan listed an array of statistics illustrating the problem the legislation sought to address. In the three prior

1. Judge Bergan remains one of the most respected jurists in New York’s history: a Justice of the Appellate Division, Third Department, then simultaneously a Justice of both the Third and First Departments, and later Presiding Justice of the Third Department; a Judge of this Court; a delegate to the 1938 Constitutional Convention, at which he drafted the county home rule provision; and a delegate to the 1965 Constitutional Convention, at which he served as the Chair of the Committee on Education. He also authored *The History of the New York Court of Appeals, 1847-1932*.

years alone, there were 1.3 million charges of traffic violations, each a misdemeanor, making "it . . . apparent that almost everyone who drives a car has had, or will soon have, a misdemeanor conviction" (*id.* at 7-8). An "overwhelmingly large percentage" of these cases were for "petit and minor infractions" (*id.* at 8). Indeed, Judge Bergan wrote, the Department of Corrections estimated that 75% of all misdemeanor cases were traffic cases (*id.*). The absence of a noncriminal offense for traffic violations thus resulted in "huge accumulations of the names of persons who are not criminals in any sense" in the State's criminal records (*id.*). Those records were "cumbersome to the State," as well as "a source of continued embarrassment to the persons convicted," who would have to disclose their convictions for their traffic violations in a variety of contexts (*id.*). Judge Bergan mused that "[t]he man who parks too far from the curb or commits a similar traffic violation finds himself in the same criminal category as one who commits petit larceny, unlawful entry, assault in the third degree, is a common gambler or operates a house of ill fame" (*id.*). Many individuals in their official capacity echoed these sentiments and urged passage of the bill.²

In passing the provisions now in Vehicle and Traffic Law §§ 155 and 1800, the legislature appears to have reserved to itself the ability to make traffic violations criminal. Before Assembly Member Robinson's bill passed in 1934, the definition of "crime" in the State's Penal Law included any act or omission prohibited by law that could be punished by a fine alone (Bender's Penal Law and the Code of Criminal Procedure of New York [1933], Penal Law, art 1, § 2). In his memorandum to the Governor, Judge Bergan pointed out that in a separate section of the Vehicle and Traffic Law at the time, the legislature appeared to intend that only third or subsequent offenses of a particular kind within a year should be criminalized as a mis-

2. See Letter from Mark Graves, Commissioner of Taxation & Fin, to Governor Herbert H. Lehman, Apr. 26, 1934, Bill Jacket, L 1934, ch 485 at 10; Letter from George W. Woltz, Chief Judge, City Court of Buffalo, to Governor Herbert H. Lehman, Apr. 26, 1934, Bill Jacket, L 1934, ch 485 at 11; Letter from Arthur L. Wilder, Rochester City Judge and President, NY St Assn of Magistrates, to Governor Herbert H. Lehman, Apr. 27, 1934, Bill Jacket, L 1934, ch 485 at 12; Letter from Walter N. Thayer, Jr., Commissioner, St of NY Dept of Corr, to Charles Poletti, Counsel to Governor Herbert H. Lehman, May 5, 1934, Bill Jacket, L 1934, ch 485 at 18; Mem from Timothy F. Cohan, Assistant Atty-Gen, St of NY Dept of Law, to Governor Herbert H. Lehman, May 8, 1934 at 3, Bill Jacket, L 1934, ch 485 at 22.

demeanor (Letter and Mem of Justice Francis Bergan, Bill Jacket, L 1934, ch 485 at 9). Due to the Penal Law’s definition of crime, however, “even the violation of local ordinances adopted in pursuance to the Vehicle and Traffic Law [were] crimes” (*id.*). In other words, to meet the legislature’s apparent intent, the bill needed to amend the Penal Law to account for “traffic infraction” as a noncriminal offense, which it did. Thus, the definition of violations of “any local law, ordinance, order, rule or regulation” as traffic infractions in Vehicle and Traffic Law § 1800 suggests that the legislature intended to bar all political subdivisions of the State from criminalizing traffic infractions unless the legislature itself had designated them as misdemeanors or felonies (Vehicle and Traffic Law § 1800 [a]).

In addition to the statutory language and legislative history, one other set of facts gives me pause. New York City appears to have had some doubt as to its own authority to criminalize the conduct at issue here. Before passing Administrative Code § 19-190, the City actively lobbied the legislature to amend the Vehicle and Traffic Law to make it a misdemeanor for a driver to fail to exercise due care and cause physical injury to a pedestrian or a bicyclist (*see City of New York, Vision Zero Action Plan* at 22 [2014]). The City failed to convince the legislature to do so, after which the City adopted Administrative Code § 19-190, the ordinance under which Mr. Torres and Mr. Lewis were convicted.

Thus, there remains an open question, unresolved by this case, as to whether cities or other political subdivisions of the State can criminalize violations that the State has designated as traffic infractions. Our affirmance of the convictions here should not be understood to have resolved that question, which I also do not see raised or resolved in any of our prior decisions.

Chief Judge DiFiore and Judges Rivera, Fahey, Wilson, Singas and Cannataro concur; Judge Wilson in a concurring opinion.

In each case: Order affirmed.
